

INDEPENDENT CONTRACTOR AGREEMENT

This Work for Hire Agreement ("Agreement") is made on _____, between [SERVICE PROVIDER FULL NAME] ("The Service Provider") and [CLIENT COMPANY NAME] ("The Client").

1. DESCRIPTION OF SERVICES. Beginning on [START DATE], The Service Provider will provide the following services (collectively, the "Services"):
 - a. *[Describe service #1]*
 - b. *[Describe service #2]*
 - c. *[Describe service #3]*
 - d. *[Describe service #4]*
 - e. *[Describe service #5 — add or remove lines as needed]*
2. SERVICE LOCATION. The Service to be provided under this Agreement shall be performed at [SERVICE LOCATION] (e.g. The Service Provider's place of business / home office).
3. SCHEDULE AND DAYS OFF. The Service Provider's assistance is generally available to provide Services
 - a. *[DAYS OF THE WEEK], [NUMBER] days per week*
 - b. *Work will be performed for at least [NUMBER] hrs a day*
 - c. *Times will be agreed upon by client and service provider at least [NUMBER] days prior to each work day*
 - d. *The service provider will be consistent and will perform their task diligently every day, unless extenuating circumstances apply (e.g. poor health, family emergency)*
4. PAYMENT FOR SERVICES. The Client will pay compensation to The Service Provider for the Services at a rate of [\$RATE] per [HOUR / WEEK / MONTH] + [\$COMMISSION AMOUNT] commission for [DESCRIBE WHAT EARNS THE COMMISSION]. The Service Provider will have an opportunity to ascend to [\$INCREASED RATE] per [HOUR / WEEK / MONTH] and [\$INCREASED COMMISSION] commission after milestones are set and met after the initial [NUMBER] days of training. Those milestones will be added as an amendment to this Agreement when they are created after the first [NUMBER] days of training. The compensation shall be payable and due on [PAYMENT DATES] of each month.

5. TERM/TERMINATION. Either party may terminate this Agreement upon [NUMBER] days written notice to the other party. Provided, however, that each party may terminate the Agreement immediately without prior notice in the event of a breach of this Agreement by the other party. Upon Termination, The Client will send any remaining payments due immediately.
6. NON-DISCLOSURE AND NON-SOLICITATION. The Service Provider shall not directly or indirectly disclose to any person other than a representative of The Client at any time either during the term of this Agreement or following termination or expiration thereof, any confidential or proprietary information pertaining to The Client, including but not limited to customer lists, contacts, financial data, sales data, supply sources, business opportunities for new or developing business, plans and models, or trade secrets. Furthermore, The Service Provider agrees that during the term of this Agreement, and for [NUMBER] years following the termination of this Agreement, The Service Provider shall not directly or indirectly solicit or attempt to solicit any customer or suppliers of The Client other than on behalf of The Client.
7. RELATIONSHIP OF PARTIES. It is understood by the parties that The Service Provider is an independent contractor with respect to The Client and not an employee of The Client. The Client will not provide fringe benefits, including health insurance benefits, paid vacation, or any employee benefit, for the benefit of The Service Provider.
8. WORK PRODUCT OWNERSHIP. Any works copyrighted, ideas, discoveries, inventions, patents, products, or other information (collectively, the "Work Product") developed in whole or in part by The Service Provider in connection with the Services shall be the exclusive property of The Client. Upon request, The Service Provider shall sign all documents necessary to confirm or perfect the exclusive ownership of The Client to the Work Product.
9. LIABILITY. The Service Provider will not be liable for loss, damage or delay of The Client's project due to circumstances beyond The Service Provider's control. Such circumstances may include (but are not limited to) public unrest, power outages, and inability to contact The Client. In the event of such loss, damage, or delay, The Service Provider will make every effort to notify The Client immediately.
10. CONFIDENTIALITY. The Service Provider will not at any time or in any manner, either directly or indirectly, use for personal benefit of The Service Provider, or divulge, disclose or communicate in any manner any information that is proprietary to The Client. The Service Provider will protect such information and treat it as strictly confidential. This provision shall continue to be effective after the termination of this

Agreement. Upon termination of this Agreement, The Service Provider will return to The Client all records, notes, documentation and other items that were used, created, or controlled by The Service Provider during the term of this Agreement with the exception of items purchased by The Service Provider and not reimbursed by The Client.

11. SEVERABILITY. If any provision of this Agreement shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited.
12. GOVERNING LAW. This Agreement shall be governed by and construed in accordance with the laws of [STATE / COUNTRY], without regard to its conflict of law provisions.
13. ENTIRE AGREEMENT. This Agreement contains the entire agreement of the parties and supersedes all prior discussions, representations, and agreements relating to its subject matter. Any amendment must be in writing and signed by both parties.

CLIENT:

Signature:

Name:

Company:

Date:

SERVICE PROVIDER:

Signature:

Name:

Company:

Date:
